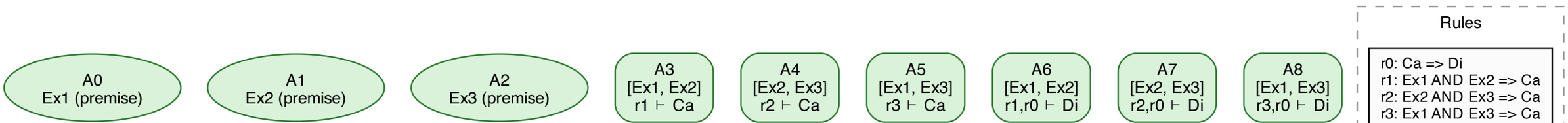Fairchild v Glenhaven (2002) — Overdetermination